

STATE OF NEW YORK

3188--A

2025-2026 Regular Sessions

IN SENATE

January 24, 2025

Introduced by Sens. PERSAUD, BROUK -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- recommitted to the Committee on Health in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to physician charges for missed appointments by patients

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public health law is amended by adding a new section 19-a to read as follows:

§ 19-a. Physician charges for missed appointments of patients; limitation and disclosure. 1. No physician licensed under article one hundred thirty-one of the education law shall charge any patient a fee or other charge for failing to appear at the appointed time of a scheduled appointment where the physician's office has received notice of a cancellation or a change of the appointment at least twenty-four hours in advance of the scheduled appointment.

2. In any case where a physician's policy is to charge a fee for missed patient appointments, advance written notice of the terms of such policy shall be prominently posted in the patient waiting room of the physician's office and periodically included with bills mailed to patients. No fee for missed patient appointments may be charged in the absence of such advance written notice being given to the patient. A patient shall be notified if the waiting time is approximately forty-five minutes or more. A patient cancellation fee shall be barred if a patient arrives on time for their appointment and waits longer than one hour after their appointment time and was not seen by a physician.

3. No provision of this section shall be deemed to authorize a physician to charge a fee for missed patient appointments if such charge is

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 otherwise prohibited by law, regulation, rule or practice or deemed to
2 be unethical.

3 4. A physician who is determined, after opportunity for a hearing, to
4 have violated the provisions of this section shall be subject to a fine
5 pursuant to subdivision two of section twelve-b of this article. In
6 addition, where the provisions of this section have been violated, the
7 physician shall refund to the patient the amount collected as a fee for
8 a missed patient appointment.

9 § 2. This act shall take effect on the first of the calendar month
10 next succeeding the sixtieth day after it shall have become a law and
11 shall apply to all appointments scheduled to occur on or after its
12 effective date no matter when made.